

the evidence: “Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) *Gamboa v. Ne. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 164–65. The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

Here, Defendant has provided a copy of the DRA electronically executed by Plaintiff. Defendant has also submitted a Declaration of Dan Stock, the Senior Director of Human Resources Information Systems. The Declaration of Stock authenticates the DRA and provides detailed evidence regarding the standard employee onboarding process, the security of the online system used, and the method of execution. The Declaration also describes the process as it applied specifically to Plaintiff, including when she executed the DRA. Supporting exhibits are attached, including screenshots of relevant portions of the online onboarding system. Defendants have carried their burden to demonstrate an agreement to arbitrate the controversy exists.

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*See Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219.) Here, no opposition has been filed and thus there is no challenge to the authenticity of the agreement. The moving party has met its burden and the Court is required to compel arbitration if the agreement is enforceable.

Once the Court “determines the agreement to arbitrate exists, it should then decide the other objections to its enforceability. The court must grant the petition “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (§ 1281.2.)” *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th at p. 219. Plaintiff bears the burden of showing unconscionability by a preponderance of the evidence. *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1468. Plaintiff has not opposed the Motion, and no unconscionability has been alleged. There is no evidence before the Court that Defendants have waived their right to compel arbitration, or that any other grounds exist for revocation of the agreement. The DRA will be enforced.

The Motion to Compel Arbitration is **GRANTED**. This matter is stayed pending the outcome of arbitration. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order. This matter is set for a review hearing regarding status of arbitration on **Monday, May 5, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the review hearing.

NAVITAS CREDIT CORP. VS. BETH DOES NAILS LLC, ET AL.

Case Number: 23CV-0201878

Tentative Ruling on Order to Show Cause Re: Contempt: An Order to Show Cause Re: Contempt (“OSC”) issued on September 23, 2024, to Beth Does Nails LLC and Elizabeth Leese-Ryan for failure to comply with this Court’s April 15, 2024 Order granting Plaintiff’s Motion for Assignment of Rights. Proper proof of personal service is on file. No response to the Order to Show Cause has been filed.

The elements that support punishment for contempt are (1) a valid court order; (2) the alleged contemnor's knowledge of the order; and (3) noncompliance. *In Re Marcus* (6th Dist. 2006) 138 Cal.App.4th 1009. An individual may be held in contempt of court for "disobedience of any lawful judgment, order, or process of the court." CCP §1209(a)(5). If, after investigation and hearing, the individual is found guilty of contempt, he may be punished with a fine not to exceed \$1000 or imprisonment not to exceed five days. CCP §1218(a). He may be ordered to pay the moving party's attorney's fees and costs. CCP §1218(a). If the contempt results from the individual's failure to perform an act that is within his power to perform, he may be imprisoned until he has performed the act. CCP §1219(a).

In this case, Plaintiff seeks imprisonment of Defendant if she is found guilty of contempt in addition to a possible monetary fine. Because the OSC hearing may result in depriving Defendant of her physical liberty, she has a due process right to court-appointed counsel if she demonstrates that she is financially unable to obtain counsel on her own. *Iraheta v. Superior Court* (2nd Dist. 1999) 70 Cal.App.4th 1500, 1503; *Lassiter v. Department of Social Services* (1981) 452 U.S. 18, 25; *Salas v. Cortez* (1979) 24 Cal.3d 22; *Conservatorship of Sides* (3rd Dist. 1989) 211 Cal.App.3d 1086, 1091-1092. **The parties should attend this hearing prepared to set a date for an evidentiary hearing on the Order to Show Cause re Contempt. Defendant should also be prepared to address the issue of her eligibility for court-appointed counsel to represent her only at the OSC hearing.**

SHILICH VS. WHEELER

Case Number: 24CH-0205521

Tentative Ruling on Motion for Attorney Fees: Respondent Wilder Wheeler seeks attorney fees and costs as prevailing party in this matter. CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752. "Under the lodestar method, the trial court must first determine the lodestar figure—the reasonable hours spent multiplied by the reasonable hourly rate—based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case. (*Ketchum, supra*, 24 Cal.4th at pp. 1131-1133, 104 Cal.Rptr.2d 377, 17 P.3d 735.)" *Glaviano v. Sacramento City Unified Sch. Dist.* (2018) 22 Cal. App. 5th 744, 751. "The reasonable hourly rate is that prevailing for private attorneys in the community conducting non-contingent litigation of the same type. [Citations]" *Ibid.*

Respondent is the prevailing party and therefore entitled to fees and costs. Counsel for Respondent requests a rate of \$300 per hour which is reasonable. However, the declaration of counsel is insufficient to warrant the number of hours requested. The declaration provides a general overview of time spent, but is not a "careful compilation of the time spent" and the descriptions provided are not sufficiently detailed to permit the Court to make a finding that they are reasonable. For example "Reviewed property in Igo" does not appear to constitute attorney services. Counsel also spent 2 hours reading and studying the Request for Civil Harassment Restraining Order, which is a Judicial Council form pleading. Trial preparation is itemized for 6 hours, but Respondent called no witnesses during the two-hour trial. This appears unreasonable. The Court finds 10 hours to be reasonable in this case.